

FEDERAL MARITIME COMMISSION

DOCKET NO. 22-23

MARINE TRANSPORT LOGISTICS, INC. v. CMA CGM S.A.

**RESPONDENT'S MOTION FOR AN EXTENSION OF TIME AND
FOR COMPLIANCE WITH FRENCH LAW AND THE HAGUE CONVENTION**

Pursuant to 46 C.F.R. 502.69, Respondent CMA CGM S.A. (CMA or Respondent) hereby moves for a 30-day extension of the time for Respondent to provide documents requested by Complainant Marine Transport Logistics, Inc. (MTL or Complainant) – from March 9, 2023 to April 10, 2023. The basis of this Motion, elaborated below, is that the documents responsive to Complainant's Request are subject to a French law that requires review by the appropriate French authorities of all documents proposed to be submitted in a proceeding before the FMC, enforceable by criminal penalties, including fines and imprisonment. CMA fully intends to produce documents to Complainant but is required to first comply with the procedures and strictures of French law. CMA also fully expects that the French authorities will permit the documents to be produced to MTL, and that 30 days should be sufficient both to follow the processes required by French law and to give the French authorities an opportunity to rule.¹ This review may be further expedited if counsel for the Parties can agree to clarify/narrow the scope of the requests.

¹ It is not anticipated that this extension will prevent the Parties from completing discovery by the current deadline of June 19, 2023.

Because, as also elaborated below, review by the French authorities requires compliance with the Hague Convention, CMA also requests the Presiding Officer to send an official request to the French authorities, as outlined in Exhibit A (an official letter from the French authorities, with English translation, confirming application of the French statute and explaining the requisite procedure).

GROUNDINGS FOR THE MOTION

After CMA was served with MTL's discovery requests, it notified the *Service de l'Information Stratégique et de la Sécurité Economiques* (SISSE) of the French Ministry of Finance, as required by French law. In response to this notice and a follow-up inquiry by CMA, SISSE instructed that, as the documents requested were "in connection with foreign judicial or administrative proceedings," the request was subject to the requirements of French law, so that international treaties and French law must be followed before the information may be made available to MTL. *See* Exhibit A, received by CMA from the Ministry of Finance on March 8, 2023.

The salient points made by SISSE are as follows:

1. French law required CMA to notify the French authorities of the requests, which CMA did. As the letter states: "in accordance with the Law n°68-678 of July 26, 1968 and its Decree n° 2022-207 of February 18, 2022, you notified the Service de l'Information Stratégique et de la Sécurité Economiques (SISSE)" of the discovery request.
2. French law specifically applies to discovery requests made before the FMC:

"Marine Transport Logistics, Inc.'s request for documents is aimed at collecting evidence in the framework of a foreign judicial or administrative proceedings, in front of the FMC. Therefore, article 1 bis of the Law n°68-678 of July 26, 1968, is applicable. Indeed, this article prohibits « any person from requesting, seeking or disclosing, in writing, orally or in any other form, documents or information ». The framework for this general prohibition of communication is limited by the purpose and context of the transmission, namely « the formation of evidence for or in connection with foreign judicial or administrative proceedings »."

3. French law does not *per se* bar production of documents. Rather, it merely requires that the request be made and processed through the appropriate channels, as specified in the Hague Convention: “[T]he communication of information is allowed when it takes place in the framework of « international treaties or agreements and applicable laws and regulations ».”
4. The letter goes on to explain how the documents may be appropriately requested:

Thus, in order to comply with the French legal framework, this transmission shall be carried out only through the assistance channels provided for this purpose. . . . [Y]our company should solicit from the FMC Office of the Administrative Law Judges the delivery of a Letter of Request in accordance with the Convention of 18 March 1970 on the taking of evidence abroad in civil or commercial matters. This Letter of Request shall be transmitted to the Department of Mutual Assistance, Private International and European Law within the Ministry of Justice (entraide-civile-internationale@justice.gouv.fr), in its capacity as the French central authority.”

5. The requested information “may be subject to a sensitivity check in light of article 1 of the Law n°68-678 of July 26, 1968.”
6. Failure to comply with French law subjects violators to criminal sanctions:

“This law is a criminal law of public order and of strict interpretation in its application. Any breach, by a natural person, of the prohibitions set out by this law is punishable by 6 months of imprisonment and a fine of 18.000 euros, according to article 3 of the above-mentioned law.”

As previously noted, French law does not prevent MTL from receiving the documents it requests. The only exception to our understanding is for documents that are “likely to create a prejudice to the sovereignty, security or economy of France.” We have no reason to believe that any of the documents requested by MTL are likely to fall within this restriction, although we have asked Complainant’s Counsel to confer about possible clarification/narrowing of the document requests, to reduce that possibility. Further, following French law and the Hague Convention is not likely to entail significant delay. French officials estimate that it should take approximately three weeks to review the documents after the formal request is made by the

FMC and the documents are provided to the authorities by CMA. And again, they have noted that clarification/narrowing of the very broad (and frequently redundant) document requests would help reduce the review period.² Finally, we note that the Shipping Act itself contemplates using official channels to obtain information subject to the law of another country. 46 U.S.C. 41108(c)(2).

CONSULTATION

As required by the FMC Rules, Counsel for Respondent conferred with Counsel for Complainant before filing the instant Motion. Complainant's Counsel said that he objects to the Motion and plans to file a response. In so doing, he suggested that the instant Motion is somehow contrary to the representation, made when CMA CGM S.A. was substituted for CMA CGM (America) LLC, that the substitution would not affect MTL's ability to obtain discovery. It does not, for the simple reason that the documents are owned by CMA and in France (by virtue of their residence on French servers), so French law would apply even if CMA CGM (America) LLC were the only Respondent.

² If the Complainant's Counsel or the Presiding Officer have additional questions or concerns, we would be pleased to assist, or as stated in the attached letter, the French authorities invite questions or concerns to them directly via email to Commissaire à l'Information Stratégique et de la Sécurité Économiques, M. Thomas Courbe at sec.csisse@finances.gouv.fr.

CONCLUSION

For the reasons stated above, the Presiding Officer should: (i) extend the time for CMA to respond to MTL's requests for production of documents until April 10, 2023; and (ii) transmit a Letter of Request for cooperation with respect to the documents to French authorities.³ We expect that this extension will be sufficient to allow CMA to produce the documents especially if Complainant cooperates, but that is somewhat out of our control.

Dated: March 9, 2023

Respectfully submitted,

/s/ *Rebecca A. Fenneman*

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ATTORNEYS FOR RESPONDENT
CMA CGM S.A.

³ As instructed by SISSE, this Letter of Request is to be transmitted to the Department of Mutual Assistance, Private International and European Law within the Ministry of Justice via email to entraide-civile-internationale@justice.gouv.fr, in its capacity as the French central authority. Respondent would be pleased to prepare such a draft Letter of Request, as instructed by the Presiding Officer.

CERTIFICATE OF SERVICE

I certify that on the 9th day of March, 2023, a true and correct copy of the foregoing Motion was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEY FOR THE COMPLAINANT:

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EXHIBIT A

Letter of March 8, 2023

From

**Thomas Corbe,
Commissaire a L'Information Strategique
et de la Securite Economique
Direction generale des Entreprises
Ministere de L'Economie, des Finance et de
la Souverainete Industrielle et Numerique**

To

**Guillaume Heckestweiler,
General Counsel, CMA CGM SA**



MINISTÈRE
DE L'ÉCONOMIE,
DES FINANCES
ET DE LA SOUVERAINETÉ
INDUSTRIELLE ET NUMÉRIQUE

Liberté
Égalité
Fraternité

Direction générale
des Entreprises

Mr. Guillaume HECKETSWEILER
General Counsel
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Boulevard Jacques Saadé
4, quai d'Arenc
13002 Marseille

Réf. : SISSE/2023/03/975

Annexe : Traduction de courtoisie en anglais /
Courtesy translation

Paris, le 8 mars 2023

Monsieur,

Dans le cadre d'une réclamation déposée devant la Commission Maritime Fédérale des Etats-Unis d'Amérique (*Federal Maritime Commission (FMC)*), en raison de violations alléguées du *Shipping Act* de 1984, la société *Marine Transport Logistics, Inc.* a sollicité la communication de documents auprès de votre société, CMA CGM SA. Conformément à la loi n° 68-678 du 26 juillet 1968 et au décret n° 2022-207 du 18 février 2022, vous avez saisi le Service de l'Information Stratégique et de la Sécurité Économiques (SISSE) du Ministère de l'Économie, des Finances et de la Souveraineté industrielle et numérique, en sa qualité de guichet unique de cette loi.

La demande de communication de documents émanant de la société *Marine Transport Logistics, Inc.* vise à constituer des preuves en vue d'une procédure judiciaire ou administrative étrangère, devant la FMC. Or, l'article 1^{er} bis de la loi n° 68-678 du 26 juillet 1968 dispose qu'« *il est interdit à toute personne de demander, de rechercher ou de communiquer, par écrit, oralement ou sous toute autre forme, des documents ou renseignements d'ordre économique, commercial, industriel, financier ou technique tendant à la constitution de preuves en vue de procédures judiciaires ou administratives étrangères ou dans le cadre de celles-ci* ». Cette interdiction s'applique « *sous réserve des traités ou accords internationaux et des lois et règlements en vigueur* ».

Afin de respecter le cadre juridique français, cette transmission ne pourra être réalisée qu'à travers les canaux d'assistance prévus à cet effet. En l'espèce, les informations requises se trouvant sur le territoire français, il conviendra de solliciter auprès de l'*Office of the Administrative Law Judges* de la FMC la délivrance d'une commission rogatoire en application de la convention du 18 mars 1970 sur l'obtention des preuves à l'étranger en matière civile ou commerciale, laquelle devra être transmise au département de l'entraide, du droit international privé et européen au sein du Ministère de la Justice (entraide-civile-internationale@justice.gouv.fr), en sa qualité d'autorité centrale française.

En cas de questions sur l'application de la loi de 1968, vous pouvez également inviter l'autorité étrangère en charge de ce contentieux ou le demandeur à prendre l'attache de notre service (sec.csisse@finances.gouv.fr).

Par ailleurs, l'article 1^{er} de la loi n° 68-678 du 26 juillet 1968 prévoit qu'« *il est interdit à toute personne physique de nationalité française ou résidant habituellement sur le territoire français et à tout dirigeant, représentant, agent ou préposé d'une personne morale y ayant son siège ou un établissement de communiquer par écrit, oralement ou sous toute autre forme, en quelque lieu que ce soit, à des autorités publiques étrangères, les documents ou les renseignements d'ordre économique, commercial, industriel, financier ou technique dont la communication est de nature à porter atteinte à la souveraineté, à la sécurité, aux intérêts économiques essentiels de la France [...]* ».

Cette loi est une loi pénale d'ordre public et d'interprétation stricte dans son application. La violation d'une interdiction édictée par cette loi fait encourir les peines de 6 mois d'emprisonnement et 18 000 euros d'amende, conformément à l'article 3 de la loi susvisée.

Ainsi, les informations réclamées pourront, le cas échéant, faire l'objet d'un contrôle préalable de leur sensibilité par le SISSE au titre de l'article 1^{er} de la loi de 1968.

Je vous prie d'agréer, Monsieur, l'expression de mes salutations distinguées.

THOMAS COURBE

**COMMISSAIRE A L'INFORMATION STRATEGIQUE ET DE
LA SECURITE ÉCONOMIQUES**

Copies :

- Ministère de l'Europe et des Affaires Etrangères :
 - o M. Aurélien LECHEVALLIER, Directeur général de la mondialisation, de la culture, de l'enseignement et du développement international ;
 - o Mme Hélène DANTOINE, Directrice de la diplomatie économique ;
- Ministère de la Justice :
 - o Rémi DECOUT-PAOLINI, maître des requêtes au Conseil d'État. Directeur des affaires civiles et du Sceau ;
 - o Olivier CHRISTEN, magistrat, Directeur des affaires criminelles et des grâces ;
- Cabinet WINSTON & STRAWN :
 - o Maître Mathilde LEFRANC-BARTHE - Avocat au Barreau de Paris.

ANNEXE
TRADUCTION EN ANGLAIS / COURTESY TRANSLATION

Paris, March 8th, 2023

Dear Mr. HECKETSWEILER,

In the context of a complaint filed before the U.S *Federal Maritime Commission (FMC)* on the basis of alleged breach of the 1984 Shipping Act, *Marine Transport Logistics, Inc.* requested the production of documents from CMA-CGM S.A.. Pursuant to this request, and in accordance with the Law n°68-678 of July 26, 1968 and its Decree n° 2022-207 of February 18, 2022, you notified the *Service de l'Information Stratégique et de la Sécurité Economiques (SISSE)* in its quality of single entry point when it comes to matters covered by this French law.

Marine Transport Logistics, Inc.'s request for documents is aimed at collecting evidence in the framework of a foreign judicial or administrative proceedings, in front of the FMC. Therefore, article 1 *bis* of the Law n°68-678 of July 26, 1968, is applicable. Indeed, this article prohibits « any person from requesting, seeking or disclosing, in writing, orally or in any other form, documents or information ». The framework for this general prohibition of communication is limited by the purpose and context of the transmission, namely « the formation of evidence for or in connection with foreign judicial or administrative proceedings ». However, the communication of information is allowed when it takes place in the framework of « international treaties or agreements and applicable laws and regulations ».

Thus, in order to comply with the French legal framework, this transmission shall be carried out only through the assistance channels provided for this purpose. In this case, the information required are located in France. Therefore, your company should solicit from the FMC Office of the Administrative Law Judges the delivery of a Letter of Request in accordance with the Convention of 18 March 1970 on the taking of evidence abroad in civil or commercial matters. This Letter of Request shall be transmitted to the Department of Mutual Assistance, Private International and European Law within the Ministry of Justice (entraide-civile-internationale@justice.gouv.fr), in its capacity as the French central authority. You can also invite the foreign authority in charge of your litigation or the plaintiff to contact our department if there are any questions about application of the 1968 law (sec.csisse@finances.gouv.fr).

Furthermore, article 1 of the Law n°68-678 of July 26, 1968 prohibits any individual of French nationality or ordinarily resident in France and any director, representative, agent or employee of a legal entity having its registered office or an establishment in France from communicating in writing, orally or in any other form, in any place whatsoever, to foreign public authorities, documents or information of an economic, commercial, industrial, financial or technical nature, the communication of which is likely to create a prejudice to the sovereignty, security or economy of France.

This law is a criminal law of public order and of strict interpretation in its application. Any breach, by a natural person, of the prohibitions set out by this law is punishable by 6 months of imprisonment and a fine of 18.000 euros, according to article 3 of the above-mentioned law.

Thereby, the information required in the framework of this investigation may be subject to a sensitivity check in light of article 1 of the Law n°68-678 of July 26, 1968.

Sincerely yours,